

HOUSE No. 4534

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, September 25, 2025.

The committee on Cannabis Policy, to whom was referred the petition (accompanied by bill, House, No. 180) of Priscila S. Sousa and Aaron L. Saunders relative to accounts receivable in the cannabis industry, reports recommending that the accompanying bill (House, No. 4534) ought to pass.

For the committee,

DANIEL M. DONAHUE.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regularizing accounts receivable in the cannabis industry.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 94G of the General Laws, as so appearing in the 2022 Official
2 Edition, is hereby amended by inserting after section 22 the following section:-

3 Section 23(a). For the purposes of this section, the word “licensee” shall mean any
4 marijuana establishment licensed pursuant to this chapter, any medical marijuana establishment
5 licensed pursuant to chapter 94I or any other applicable licensee determined by the commission.

6 (b) It shall be unlawful for any licensee to receive or extend credit, directly or indirectly,
7 for marijuana or marijuana products sold or delivered to any licensee except in the usual course
8 of business and for a period of not more than 60 days. Nothing in this chapter shall require any
9 licensee to extend credit to any other licensee. If any licensee does not discharge in full any such
10 indebtedness within such 60-day period, the indebtedness shall be overdue and such licensee
11 shall be delinquent within the meaning of this section. Within 3 days after a licensee becomes
12 delinquent, the licensee that extended the credit shall notify the commission and the delinquent
13 licensee in a manner to be determined by the commission. The notice shall contain the name of

the delinquent licensee, the date of delivery of the marijuana or marijuana products and the amount of the indebtedness remaining undischarged. Within 5 days after receipt of such notice, the commission shall review the delinquency report and, upon finding it valid, post the name and address only of the delinquent licensee in a delinquent list containing the names and addresses of all delinquent licensees. Such posting shall constitute notice to all licensees of the delinquency of such licensee.

(c) If a licensee is seriously damaged in its business by riot, insurrection, civil disturbance, fire, explosion or by an act of God, so-called, the licensee may file an application with the commission requesting that the provisions of subsection (b) be suspended as to the licensee for a reasonable period. The commission shall set down the application for hearing within 21 days and shall notify all licensees engaged in selling to the applicant of the hearing and give all interested parties the right to be heard. Pending such hearing, the commission may, after an investigation and determination that the facts as stated by the licensee in its application would constitute reasonable grounds for relief, order that such licensee shall not be posted as delinquent. If the commission finds it is in the public interest to do so, it may suspend the application of subsection (b) with respect to the applicant for such period as it may consider to be reasonable and in the public interest. Such action shall not deprive creditors of all legal rights available to them for the collection of the indebtedness and shall be contingent on such terms and conditions as the commission shall determine.

(d) No licensee shall sell or deliver, directly or indirectly, marijuana or marijuana products to a licensee whose name is posted on the delinquent list, except upon full payment made on or before delivery by certified funds, electronic funds transfer or other payment method as may be approved by the commission and no licensee that is posted on the delinquent list shall

37 purchase or accept delivery of any marijuana or marijuana products except upon full payment
38 made on or before delivery by certified funds, electronic funds transfer or other payment method
39 as may be approved by the commission.

40 (e) Upon full discharge of the indebtedness for which a licensee was posted to the
41 delinquent list, the licensee who filed the letter of notice of delinquency shall, within 24 hours
42 thereafter, notify the commission of the discharge of the indebtedness. The commission shall,
43 within 1 business day after the receipt of such notice, strike the name of the delinquent licensee
44 from the list. The commission shall, by regulations, prescribe how licensees, other than the 2
45 concerned, shall be notified of the filing of the name of a licensee on the delinquency list and the
46 removal of the name of a delinquent from such list.

47 (f) The commission shall not authorize a change of ownership or control of a licensee on
48 the delinquent list until all delinquencies are satisfied and the commission has removed the
49 licensee from the delinquent list under this section, except for approval of court-appointed
50 receivers or trustees under a voluntary assignment for the benefit of creditors; provided that prior
51 approval of such assignment shall be obtained from the commission after notice to all creditors
52 has been given and reasonable time allowed for objections by all creditors.

53 (g) Notwithstanding and in lieu of any other penalty in this chapter, any person who
54 violates this section shall be punished by a fine of not more than \$5,000.

55 (h) The posting list shall be available for inspection by any licensee or a duly authorized
56 agent only; provided, however, that the commission may allow third party access to the list by its
57 licensing software provider.

58 SECTION 2. The Massachusetts cannabis control commission shall promulgate or amend
59 regulations as necessary to be consistent with this act not later than 1 year after the effective date
60 of this act.